

TENTATIVE RULING(S) FOR August 21, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2313931

Torres vs Honda

TENTATIVE RULING(S):

On September 15, 2025, Plaintiff Torres accepted Defendant Honda's Code of Civil Procedure section 998 Offer (998 Offer) for \$57,554.77 in exchange for returning the Subject Vehicle.

(Song Decl. at ¶10, Exh. 2.)

Plaintiff Torres now moves to recover his attorney fees. Defendant Honda opposes.

Plaintiff Torres replies.

Neither party disputes Plaintiff's right to recover attorney fees under the Act, or under the accepted 998 Offer.

Hourly Rates

In fixing the reasonable fees, the court must determine the reasonableness of the attorney's hourly rates. (*Cordero-Sacks v. Housing Authority of City of Los Angeles* (2011) 200 Cal.App.4th 1267, 1286.) Generally, a reasonable hourly rate is the prevailing rate in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095 [*PLCM*]; *MBNA America Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1, 13.) Community is "based on where the services are rendered, i.e., where the court is located." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1145, 1157.)

Here, the reasonable rate is based on the rates charged by consumer attorneys practicing in San Bernardino County.

In this litigation, 4 attorneys and 6 paralegals at the following rates worked on the matter: (1) Jordan Cohen: \$560, (2) Jasmine Song: \$435, (3) Tomas De Jesus: \$395, (4) Bobby Walker: \$440, and (5) paralegals (Alexis Valdovinos, Destiny Olvera, Robert Aguilar, Elaine Astroga, Araceli Alatorre, and Isabel Garcia): \$215. (Song Decl. at ¶¶11-15.)

Defendant Honda argues these rates are unreasonable. However, it offers no counter-evidence to support that the rates are unreasonable. That being said, the reasonable rates in San Bernardino for consumer litigations (e.g., lemon law cases) range between \$300 and \$500.

Additionally, as noted by Honda, Plaintiff is seeking to apply hourly rates that currently exist, but not the rates charged before 2026. In particular, Song attests her rate in 2024 was \$425, and it increased to \$435, on January 5, 2026; Cohen's rates are \$510 (for 2023), \$525 (2024), \$540 (2025), and \$560 (2026); and Walker's rates are \$400 (2023), \$415 (2024), \$430 (2025), and \$440 (2026). (Song Decl. at ¶¶11-12, 14.) This is not justified. Merely because this case commenced in 2023 and the parties litigated the matter for 2.5 years before settling does not support applying a 2026 rate to work done in the years prior.

Based on the above, the following are the reasonable rates:

- Jordan Cohen: \$500 (2023-2026);
- Jasmine Song: \$425 (2025) and \$435 (2026);
- Tomas De Jesus: \$395 (2023-2024);

- Bobby Walker: \$440 (2026); and
- Paralegals: \$200 (2023-2026).

Reasonable Time

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) This is because a court must not blindly accept an attorney's reported hours but must carefully review the attorney's documented hours. (*Ketchum, supra*, 24 Cal.4th at p. 1132.)

The fees associated with a senior attorney reviewing another attorney's work, preparing internal memos, and engaging in internal conferences are not fees that should be passed onto the defense. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 250; *Premier Medical, supra*, 163 Cal.App.4th at p. 556; *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 270, 278-279.)

Although attorney fees may include paralegal (or law clerk) fees [*Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312], it does not include secretary or receptionist fees. Secretarial tasks are not compensable. (*Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10; *Neil v. Commissioner of Social Sec.* (9th Cir. 2012) 495 Fed.Appx. 845, 847; *Mountjoy v. Bank of America, supra*, 245 Cal.App.4th at p. 270.)

Plaintiff seeks to recover \$29,910.50 in fees. Exhibit 10 to Song's Declaration is the Counsel billing summary.

Defendant raises 6 challenges to incurred time that is detailed in paragraphs 7-13 to Bell's Declaration.

1. Attorney Fee & Tax Cost Motion

Initially, contrary to any contention by Honda, the fees associated with an attorney fee motion are recoverable. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 1002 ["[W]hen attorney fees are recoverable by statute, the reasonable attorney fees incurred in preparing the motion are also recoverable".].)

Concerning the attorney fee motion, the billing summary indicates attorney Walker incurred 2.2 hours in preparing and finalizing the attorney fee motion on February 16, 2026. Attorney Song attests that she incurred 1.5 hours to analyze the Opposition, 0.5 hours to analyze the billing records and claims, and 3 hours to draft the Reply and her supplemental declaration. (Song Suppl. Decl. at ¶7.) She anticipates 1 hour for the hearing. (Song Suppl. Decl. at ¶6.) This totals 6 hours. Previously, with the motion, Song attested to an anticipation of 0.5 hours to review the Opposition, 4 hours to prepare the Reply, and 0.5 hours to attend the hearing. (Song Decl. at ¶24.) That totaled 5 hours.

Considering the details in the Opposition, which would require a specific response, but considering the actual time to prepare the Reply was less than anticipated, 5 hours to review the Opposition (1.5), prepare the Reply (3), and attend the hearing (0.5) is reasonable. Also, 2.2 hours to draft the motion is reasonable. Thus, the 2.2 hours by Walker should be recoverable, and added to Song's (2026) totaled billable time is 5 hours for the post-billing entry work associated with the attorney fee motion.

Concerning the tax cost motion, the billing summary between October 8, 2025, and February 12, 2026, shows paralegal Olivera spent 0.9 hours on the matter and attorney Song spent 1 hour on the matter. Except for two entries by Olivera for 0.1 hours to file the Cost Memorandum (1/29/26), which is administrative/secretarial in nature, and 0.2 hours to review the Motion, which Song also seeks, the other entries by Olivera and Song are reasonable. Thus, the Court **cuts** 0.3 hours from the paralegal time.

Additionally, attorney Song attests that she anticipates 0.5 hours to review the motion, 3.5 hours to prepare the opposition, 0.5 hour to review the reply, and 0.5 hours to attend the hearing. (Song Decl. at ¶25.) As the Opposition to the Tax Cost Motion consisted of a 7-page points and authorities and a 20-page declaration, 3.5 hours was not necessary to prepare. Thus, the Court **adds** 4 hours to Song's (2026) hours for this post-billing work.

2. Calendaring and Administrative Tasks

Defendant Honda argues that several entries consist of merely calendaring events and engaging in administrative tasks. It further notes some of the entries are blocked bill.

Honda is correct that even if paralegal and law clerk time is recoverable, the time for secretarial and/or administrative tasks is not. However, several of the entries identified by Defendant are properly paralegal tasks of preparing, conforming, and finalizing legal pleadings, and reviewing legal pleadings. Yet the following entries for merely calendaring events, filing pleadings with the Court, updating information, and/or sending reminders are not proper recoverable fees, and therefore should be cut:

12/8/23 – Aguilar (filing) [0.1]

12/13/23 – Aguilar (calendaring) [0.1, partial]

12/13/23 – Aguilar (filing) [0.1]

12/14/23 – Astorga (calendaring) [0.2]

12/26/23 - Astorga (filing) [0.2]

1/25/24 – Astorga (filing) [0.1]

2/2/24 – Astorga (filing) [0.1]

2/2/24 - Astorga (confirming) [0.1]

2/2/24 – Astorga (calendaring) [0.1]

2/12/24 – Astorga (filing) [0.1]

2/12/24 – Astorga (calendaring) [0.1]

10/8/24 – Valdovinos (filing) [0.2]

10/30/24 – Valdovinos (calendaring) [0.1, partial]

7/8/25 – Song (verifying call) [0.1]

9/4/25 – Alatorre (confirming call) [0.1]

9/8/25 – Alatorre (confirming call) [0.1]

11/10/25 – Alatorre (reminder call) [0.1]

11/14/25 – Olvera (filing) [0.1]

11/26/25 – Olvera (review of docket) [0.1]

12/2/25 – Olvera (review of docket) [0.1]

The above amounts to **cutting** 2.2 hours from the paralegal's time, and 0.1 hours from attorney Song's (2025) time.

3. Discovery

Defendant Honda argues that the time to prepare discovery was excessive, especially when it was never served. It asks that the Court cut all 5.3 hours listed. Also, the time to review and respond to propounded discovery is excessive when it propounds the same type of discovery in lemon law cases. It asks that of the 7.7 hours to prepare responses, the Court **cuts** 4 hours.

Defendant Honda also indicates duplicate entries by De Jesus and Song. However, attorney Song adequately explains that De Jesus started the discovery responses, but after he left, she completed them. Thus, it cannot be said that there is duplication of work.

In reviewing the time entries identified by Honda, 5.3 hours to prepare 4 sets of discovery that require case-specific inquiries is not overstated. However, preparing discovery that is never served should not be passed onto Defendant. Yet not all of the 5.3 hours related to just preparing discovery. De Jesus' time on 11/8/23 (1.4 hours) and Song's time on 7/18/25 (0.6 hours) included reviewing documents associated with the Subject Vehicle. Of these two entries, De Jesus' 1.4 hours should be cut in half, and Song's time should be allowed. Therefore, of the 5.3 hours, the Court only **cuts** 4 hours, i.e., 0.7 hours from De Jesus and 3.3 hours from Song (2025).

Concerning the time to review and respond to Honda's propounded discovery, nothing in the identified entries is problematic. Although Honda may serve similar discovery in its defense in lemon law cases, a plaintiff's response must be particular to that plaintiff. In other words, Plaintiff Torres could not provide a rote response because he needs to provide specifics on his experience and damages. Therefore, the Court **denies** cutting any of the 7.7 hours by Counsel associated with responding to discovery.

4. Opposing Arbitration Motion

Plaintiff billed between January 17, 2024, and January 25, 2024, 8 hours to prepare the Opposition to Defendant Honda's Motion to Compel Arbitration. Defendant argues that 8 hours is overstated when Plaintiff's Counsel is well-versed in the Act and the applicable case law.

In general, the time entries are not problematic. However, attorney Cohen includes 2.6 hours to analyze the authorities criticizing *Felisida v. FCA*, FAA preemption, and equitable estoppel doctrine, and 4.3 hours to draft the Opposition. These entries seem overstated in light of Honda was preparing almost identical Motions to Compel Arbitration under an arbitration provision with the Retail Installment Sales Contract. The Court therefore **cuts** 1.5 hours from Cohen's time associated with opposing the Arbitration Motion.

5. Block Billing

Defendant takes issue with 5 hours that are part of block billing. Yet it does not explain what entries are improper. That being said, Song's entries on 6/12/25 (x2), 7/29/25, and 7/31/25 include descriptions of secretarial tasks (calendaring), internal office matters (updating repair order summary, communicating with supervising attorney). Of the 1.6 hours associated with these entries, the Court **cuts** 0.7 hours from Song (2025).

6. Vehicle Surrender

Finally, Honda argues that the entries between 9/16/25 and 11/24/25 for 5 hours to schedule the vehicle surrender are overstated. It asks that only 2.5 hours be recoverable. A review of the record shows paralegals coordinating the matter with Torres. Nothing in the entries supports that the time was not properly incurred. Therefore, the Court **denies** striking any of the vehicle surrender entries.

Recap. In reviewing the post-billing request, Plaintiff's Counsel is entitled to 9 additional hours for post-billing work on the tax cost motion and attorney fee motion at attorney Song's 2026 rate. However, time sought for secretarial/administrative work, duplicative work, and excessive discovery and arbitration matters is reduced: attorney Cohen (1.5 hours), attorney De Jesus (0.7 hours), attorney Song (2025) (4.1 hours), and paralegals (2.5 hours).

After the above hourly rate reductions and reduction of unreasonable hours, the lodestar fee award is **\$24,911.50**:

	Reasonable Rates	Hours Sought	Hours Cut	Hours Compensable	Total
Jordan Cohen	\$500.00	12.1	1.5	10.6	\$5,300.00
Tomas De Jesus	\$395.00	1.5	0.7	0.8	\$316.00
Jasmine Song (2025)	\$425.00	29.6	4.1	25.5	\$10,837.50
Jasmine Song (2026)	\$435.00	10.0	0.0	10.0	\$4,350.00
Bobby Walker	\$440.00	2.2	0.0	2.2	\$968.00
Paralegals	\$200.00	18.2	2.5	15.7	\$3,140.00
TOTAL					\$24,911.50

RULING

Based on the foregoing analysis, the Court AWARDS Plaintiff Torres \$24,911.50 in reasonable attorney fees.

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CIVSB2314282

Murphy vs Desert Inn Motel (highly recommended)

TENTATIVE RULING(S):

Before the Court is Defendants' Motion to Tax Costs. The Motion seeks to tax costs from the Memorandum of Costs filed by Plaintiff on May 8, 2026. Plaintiff filed an Opposition supported by the declarations of Germain Labat and Tomas Ross. No reply has been filed as of August 20, 2026.

Having considered the moving and opposing papers, the declarations submitted, and the

I. Court Reporter Fees

Moving Defendants request the court strike \$42,849.50 in court reporter fees. While statutory court reporter fees are allowable under section 1033.5, transcripts of court proceedings not